



NSUTMUN
DIPLOMACY DIVERSITY DISSENT

United Nations Security Council

Addressing maritime security
in the Bab-el-Mandeb Strait:
Asymmetric maritime threats
and legality of pre-emptive
measures for safeguarding

Back- ground Guide



LETTER FROM THE EXECUTIVE BOARD

Greetings Delegates!

It is our pleasure to welcome you all to this simulation of the United Nations Security Council at Netaji Subhas University of Technology Model United Nations Conference 2026.

The agenda before this committee—"Addressing Maritime Security in the Bab el-Mandeb Strait: Asymmetric Maritime Threats and the Legality of Pre-emptive Measures for Safeguarding Freedom of Navigation"—lies at the intersection of international security, the law of the sea, and evolving forms of modern conflict. It compels delegates to engage with one of the most strategically critical maritime chokepoints in the world, where global commerce, regional instability, and non-traditional security threats converge.

The Bab el-Mandeb Strait serves as a vital artery for international trade, linking the Red Sea to the Gulf of Aden and, by extension, the Suez Canal to the wider global economy. Any disruption in this narrow passage has immediate and far-reaching consequences, affecting energy markets, supply chains, and the economic stability of states far beyond the region. In recent years, however, this strategic corridor has increasingly become a theatre for asymmetric maritime threats, including attacks by non-state actors, the use of unmanned systems, and the targeting of commercial vessels under contested legal and political justifications.

The challenge before this committee is further complicated by the multiplicity of actors involved. Regional states, global naval powers, non-state armed groups, and commercial shipping interests all intersect within this maritime space, each with distinct strategic objectives. The Security Council must therefore navigate not only legal ambiguities but also geopolitical tensions that shape the feasibility of collective action.

Delegates are expected to approach this agenda with a high degree of analytical rigor, integrating legal principles with operational realities. An effective response will require balancing the imperatives of maintaining international peace and security,



upholding the rule of law, and ensuring the uninterrupted flow of global commerce. Solutions must be both normatively grounded and practically implementable, recognizing the constraints of state sovereignty, the risks of escalation, and the evolving nature of maritime threats.

At no point shall this Background Guide be cited as proof in council. Delegates are required to rely on admissible sources as outlined in the rules of procedure.

We look forward to a committee marked by substantive debate, informed diplomacy, and innovative problem-solving.

Warm regards,
The Executive Board

Hardik Sardana
President

Aditya Kumar
Vice President

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Substantive Director

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ABOUT UNSC

The United Nations Security Council (UNSC) is the primary organ of the UN responsible for maintaining international peace and security. Established under Chapter V of the UN charter, it holds significant authority in addressing conflicts, imposing sanctions, authorizing military interventions, and establishing international tribunals. Its mandate extends beyond conflict resolution to include ensuring accountability for international crimes, such as genocide, war crimes and crimes against humanity. Given its unique position within the UN system, the UNSC plays a critical role in balancing state sovereignty with the need for international justice.

Legal Basis and Authority

The UNSC derives its authority from the UN Charter, particularly from:

- Article 24, which grants the Council primary responsibility for maintaining international peace and security.
- Article 25, which obliges all UN member states to accept and implement UNSC decisions.
- Chapter VI, which empowers the Council to mediate and resolve disputes through diplomatic means.
- Chapter VII, which allows the Council to impose sanctions and military intervention, in response to threats to peace.
- Article 39, which allows the Council to determine whether a situation constitutes a “threat to international peace and security” and take appropriate measures to address it.

Through these provisions, the UNSC has the legal foundation to intervene in cases where human rights violations and international crimes pose a risk to global stability.

Role in International Accountability

One of the most significant aspects of the UNSC’s mandate is its ability to refer cases to international judicial bodies. The Council has historically used its authority to:

- Refer situations to the International Criminal Court (ICC) under Article 13(b) of the Rome Statute which allows the ICC to investigate and prosecute crimes committed in states that are not party to the Statute (e.g., Sudan, Libya).
- Establish ad hoc tribunals, such as the International Criminal Tribunal for the Former Yugoslavia (ICTY) and the International Criminal Tribunal for Rwanda (ICTR), to prosecute individuals responsible for war crimes and crimes against humanity.

- Impose targeted sanctions, including travel bans, asset freezes, and arms embargoes, on individuals and entities responsible for human rights violations.
- Authorize peacekeeping missions with mandates to protect civilians and prevent further atrocities.

Despite its far-reaching powers, the UNSC's effectiveness in ensuring accountability is often limited by political divisions among its permanent members.

Voting Procedure and Challenges

The Security Council consists of 15 member states

- Five permanent members (P5): China, France, Russia, the United Kingdom, and the United States, each possessing veto power.
- Ten non-permanent members, elected for two-year terms, without veto power.

Types of Voting Procedures

1. Procedural Votes:

- Require the support of at least nine of the 15 members.
- P5 members cannot exercise veto power in procedural votes.
- Used for setting the agenda, establishing subsidiary bodies, and deciding on working methods.

2. Substantive Votes:

- Require at least nine affirmative votes.
- In case one of the P5 nations abstains from voting, resolution still passes if there exists at least nine affirmative votes.
- A single veto from a P5 member can block a resolution, even if it has majority support.
- Used to authorize 'all military and non-military measures as may be deemed fit for the maintenance of international peace and security' (pursuant to Chapters VI and VII of the UN Charter), which practically includes actions such as sanctions, ICC referrals, and peacekeeping deployments.

The veto power is one of the biggest obstacles in the Council's efforts to hold perpetrators of international crimes accountable. For example, Russia and China have repeatedly vetoed resolutions on Syria, preventing ICC investigations into war crimes committed by the Assad regime. Similarly, the U.S. has blocked resolutions concerning Israeli military actions in Palestine. The politicization of the UNSC often results in inaction, allowing states to evade accountability for serious violations of international law.

2. INTRODUCTION TO AGENDA

What This Agenda Is Really About

The Bab el-Mandeb Strait is a narrow stretch of water between Yemen on the Arabian Peninsula and Djibouti and Eritrea in the Horn of Africa, connecting the Red Sea to the Gulf of Aden and, through the Suez Canal, linking Asia and the Indian Ocean to Europe. The U.S. Energy Information Administration recognises it as a major global sea route chokepoint, because most oil and gas exports from the Persian Gulf that use the Suez Canal or the SUMED pipeline have to pass through this strait, which at its narrowest is only about 18 miles wide and confines tanker traffic to two small lanes. Each year, roughly 12% of the world's seaborne trade including energy, manufactured goods and food moves along this route, making Bab el-Mandeb a critical pressure point for global supply chains



If obstructed, most tankers would be unable to transit the Suez Canal and would instead be compelled to reroute around the African continent. This diversion significantly increases transit time, fuel consumption, and operational costs, ultimately contributing to higher global energy and commodity prices even in regions far removed from the Middle East and Africa.

Over time, Bab el-Mandeb and the surrounding Red Sea have attracted many different threats that include terrorist attacks on warships and tankers near Yemeni ports, piracy spilling over from Somalia and the Gulf of Aden and most recently, missile, drone and explosive-boat attacks on commercial shipping by the Houthi movement and other armed actors. Since this narrow strait carries a major share of global oil and container traffic, the latest wave of attacks has already forced big shipping and energy companies to divert around Africa, raising costs, slowing trade and prompting the Security Council to put the agenda on its table as an urgent question of maritime security and freedom of navigation.

3. BACKGROUND AND CONTEXT

3.1. Key Terminologies & Concepts

Maritime Security

Maritime security refers to the condition in which the maritime domain remains safe, stable and governed by law, enabling the secure movement of vessels, crew and cargo. It encompasses the prevention and suppression of threats such as piracy, armed robbery at sea, maritime terrorism, smuggling and deliberate attacks on merchant vessels. The United Nations Secretary General has consistently highlighted maritime security is integral to global stability, given the reliance of international trade, energy flows and food supply chains on sea routes. The legal foundation for maritime security is primarily derived from the United Nations Convention on the Law of the Sea (UNCLOS), which establishes the rights and obligations of states in maritime governance.

Freedom of Navigation

The freedom of navigation is the legal principle enshrined in the Article 87 of the UN Convention on the Law of the Sea (UNCLOS), which states that all shipping flags have the right to traverse the high seas and straits used as shipping lanes such as the Bab el-Mandeb and the Red Sea as long as they are done so in accordance with international law. This includes the rights of innocent passage through territorial seas and transit passage, allowing ships to pass through territorial seas and straits used for international navigation without undue interference. Recent UN and International Maritime Organization (IMO) pronouncements on the crisis in the Red Sea emphasize how unlawful attacks on merchant shipping in the region are a direct affront to the long-standing right of navigation.

Asymmetric Maritime Threats

Asymmetric maritime threats refer to the use of unconventional, low-cost, and non-traditional methods by state or non-state actors to challenge stronger naval powers. These include the deployment of unmanned aerial systems (drones), anti-ship missiles, naval mines, and explosive-laden small craft against even stronger warships or undefended commercial vessels. Theorists and security experts have emphasized that this is a mode of attack that is favorable to weaker entities or quasi-states since it allows them to cause serious damage and gain political mileage without having to invest in building a conventional fleet of warships. The concept of asymmetric maritime threats is also applicable in the case of the Bab el-Mandeb and Red Sea region, where entities like the Houthis are utilizing smaller vessels instead of conventional fleets against shipping in this constricted waterway.

Maritime Chokepoint

A maritime chokepoint is a waterway through which a large amount of international trade is funneled, causing a bottleneck effect, with limited opportunities for diversion. The U.S. Energy Information Administration identifies the Bab el-Mandeb as a major global oil and gas chokepoint, as most Persian Gulf exports transiting via the Suez Canal or the SUMED pipeline must pass through this narrow 18-mile-wide waterway. Rerouting vessels around the African continent is significantly more time-consuming, and given the limited alternative routes, any instability in the region can lead to increased shipping costs, supply chain delays and volatility in global energy markets, including higher fuel prices.

3.2. Historical Background

Early Terrorist Attacks near Yemen (2000–2002)

The waters around Yemen provided a harbinger of how high-profile maritime targets in the Red Sea/Gulf of Aden axis might one day face threats. In October 2000, Al-Qaeda terrorists employed a small explosives-laden craft to ram the USS Cole while the US destroyer was refueling in Aden Harbour. This incident demonstrated how non-state actors operating from Yemen could threaten high-value maritime targets along the wider Red Sea Gulf of Aden shipping corridor.

Somali Piracy in the Gulf of Aden (Mid-2000s–2012)

Between 2008 and 2011, the security situation to the east of Bab el-Mandeb was worsened by the fact that armed groups operating along the unpoliced coast of Somalia hijacked merchant vessels operating in the Gulf of Aden and the western Indian Ocean for ransom. The fact that there was no Somali navy or coast guard meant that the groups used speedboats, which were supported by “mother ships,” to hijack tankers, bulk carriers, and container vessels that operated along the main route from Asia to Europe, making the Gulf of Aden one of the most treacherous shipping routes in the world for a short period, with the pirates posing a direct threat to vessels entering and leaving the Red Sea.

UNSC Anti-Piracy Measures for Somalia (2008–2016)

The surge in hijackings led the Security Council to treat Somali piracy as a threat to international peace and security and to authorise exceptional counter-measures. Beginning with Resolution 1816 (2008) and renewed and expanded through subsequent resolutions such as UN Security Council Resolution 1846 (2008) and UN Security Council Resolution 1851 (2008), the Council, acting under Chapter VII and with Somalia’s consent, allowed states and regional organisations to enter Somali territorial waters, use “all necessary



means” to repress piracy and armed robbery at sea and in some cases pursue pirate groups and their support bases ashore.

These mandates enabled multinational naval coalitions to escort ships through the Gulf of Aden, interdict suspect vessels and cooperate on prosecutions, creating the first major modern precedent for Council-sanctioned interdiction and maritime security operations in the region.

Yemeni Civil War and Control of the Red Sea Coast (2014–Present)

The Houthi movement was founded in the 1990s in the northern Yemeni region of Saada as a Zaydi religious/political revival movement that gradually evolved into an armed rebellion against the central government during a series of “Saada wars.” The movement accumulated experience, local support, and heavy weaponry captured from the Yemeni army during the “Saada wars,” and UN panels of experts have reported evidence suggesting external support that contributed to the development of the Houthis’ missile and drone capabilities.

The breakdown of the transition process in 2014 saw the Houthis emerge from their mountain stronghold to capture the capital Sanaa and then move west to capture most of the coastal region of the Red Sea, including the key port of Hodeidah, while a Saudi-led coalition was successful in securing Aden and the surrounding region for the internationally recognized government. The outcome is that Yemen is now effectively split between the Houthis who now control most of the northern coast of the Red Sea and are for the first time, capable of posing a threat to international shipping passing to and from the strait from their territory on the coast.

From Yemen’s War to the Red Sea Crisis (2023–Present)

The current crisis in the Red Sea began when the Gaza war changed the way the Houthis used their capabilities. Following the attacks by Hamas on 7 October 2023 and the response by Israel, the leaders of the Houthis announced their intention to join the war on the side of the Palestinians. The Houthis then started firing missiles and drones towards Israel.

By mid-November 2023, the Houthis had moved beyond threats to actions. The Houthis attacked the ship *Galaxy Leader* in the Red Sea. The group has since carried out dozens of attacks on ships using missiles, drones, and fast boats in the Red Sea and the Bab el-Mandeb. The attacks have been on ships that have an indirect link to Israel. The attacks have forced shipping companies to divert their ships around Africa.

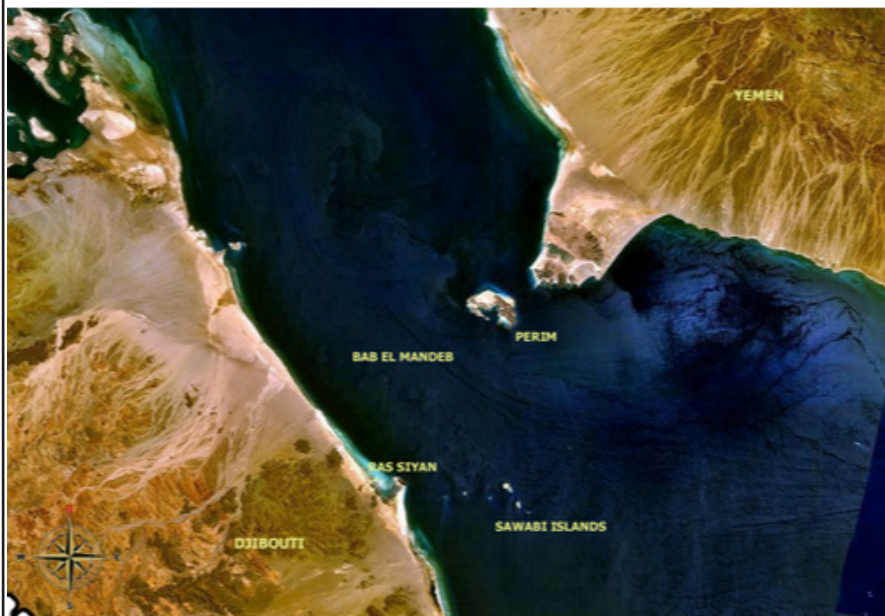
The attacks by the Houthis have been identified by briefers to the UN Security Council as a serious threat to global supply chains. The briefers have

also warned that the attacks have increased the risk of the war in Yemen and the war in Gaza merging into a wider war. The war would be centered on one of the most important shipping lanes globally.

3.3. Geostrategic Importance of the Bab el Mandeb Strait

Physical Geography

The Bab el-Mandeb is divided by Perim Island into two Traffic Separation Scheme (TSS) lanes, a narrow 3 km eastern channel for inbound oil traffic and a wider 23 km western channel for outbound container traffic.



geographical layout of BAM

The existence of Perim Island divides the Bab-el-Mandeb Strait into two unequal navigational channels, hence shaping maritime traffic patterns. The eastern channel, approximately 3 km wide, is narrow and relatively shallow, whereas the western channel, ranging between 20-25 km in width, is significantly deeper and more suitable for large-scale navigation.

This asymmetrical geography necessitates the implementation of a Traffic Separation Scheme (TSS) under the authority of the International Maritime Organization, as the risk of head-on collision is much higher in the case of unrestricted bidirectional flow in such navigational channels.

Under this system, maritime traffic is strictly regulated into designated lanes. Inbound oil tankers transiting toward the Red Sea and onward to the Suez Canal are required to use the narrow eastern channel, while outbound container traffic toward the Indian Ocean utilizes the wider western channel.

However, due to the positioning of Perim Island, vessels cannot follow a straight path through the strait.

Instead, inbound tankers must execute a critical ~90-degree pivot maneuver around the western tip of the island to align with broader navigational routes in order to proceed northward through the eastern lane.

While the TSS effectively mitigates collision risks, it simultaneously generates a systemic vulnerability. During the pivot turn, oil tankers experience highly reduced maneuverability due to their size, limited turning radius, and decreased speed. At this moment, they become highly predictable and constrained targets.

This vulnerability is heightened by the approximate 20 km proximity of the maneuvering zone to Hodeidah, an area under the influence of the Houthis movement. The tankers are exposed to potential threats, including missile strikes, drones, and other forms of low-cost asymmetric attacks.

Furthermore, the narrowness of the eastern channel prevents parallel escort formations. Naval escorts are forced into linear positioning—typically ahead of and behind the tanker—rather than surrounding it. This significantly reduces defensive coverage and reaction flexibility, particularly against lateral or sudden attacks.

Consequently, the strait's geographic and regulatory configuration produces a queue-like formation of vessels, compressing both time and space for defensive response. This creates ideal conditions for asymmetric warfare, where non-state actors can exploit predictability, limited maneuverability, and constrained escort formations.

In such a setting, relatively low-cost offensive capabilities can impose disproportionately high defensive burdens on naval forces and commercial shipping, transforming a safety-driven routing system into a strategic vulnerability.

Economic Chokepoint

The Bab el-Mandab Strait is the world's largest maritime oil chokepoint. It plays a decisive role in sustaining international trade flows by serving as an economic bridge between the eastern and western parts of the world. This is due to the fact that the only alternative route to this strait is around the Cape of Good Hope of Africa which adds 8–9 days of travel. This extended detour carries massive economic consequences, burning up to an additional \$1 million in extra fuel per voyage, tying up global shipping capacity, and triggering severe spikes in freight rates and maritime insurance premiums. Thus, the route passing through the Bab el-Mandab Strait significantly lowers fuel consumption and operational costs for maritime shipping.



The Bab el-Mandeb Strait is critical for global energy and trade. Approximately 12% of global seaborne trade passes through the strait, including vast volumes of crude oil, refined petroleum, liquefied natural gas, and containerized consumer goods such as electronics, textiles, and vehicles. Disruptions in the strait can slow down the large volumes of crude oil and refined petroleum shipments to Europe, Asia and the United States, as well as liquefied natural gas shipments to Europe. Thus, even minor delays can trigger cascading effects on global supply chains, energy markets and food security in import-dependent regions. The strait links the exclusive economic zones of Djibouti, Yemen and Somalia with those of Eritrea, Yemen, Sudan, Saudi Arabia and Egypt, underscoring its economic centrality.

Military Vulnerability and Asymmetric Warfare Amplifier

The Bab el-Mandeb Strait holds immense strategic value for both energy exporting Gulf states and trade dependent economies in East Asia, as it serves as a primary conduit for the movement of oil and manufactured goods. The problem lies in the TSS geometry as it creates a zone suited for the asymmetric warfare where low costing warfare tactics require a high cost response system, escort and defensive arms to be carried and used for the transit. Because naval escorts cannot operate in parallel formations within the narrow 3 km TSS lane, conventional protection geometries become ineffective. The shallow waters further restrict evasive manoeuvres, forcing vessels to follow predictable transit paths. These vulnerabilities are significantly intensified by the proximity of Houthi-controlled positions, located within approximately 20 km of the shipping lanes, which reduces the interception window to only a few minutes. As a result, the strait functions as an asymmetric warfare amplifier, where low-cost disruptions to maritime traffic impose disproportionately high costs on defensive operations required to secure safe and continuous transit.

In response to these risks, major powers have established military bases in Djibouti, including the United States, China, Japan, and France. These bases hold a lot of transit security power as being in close proximity (20-30 km) to the TSS lanes is perfect for rapid response to the vulnerable kill zone. As this proximity enables a 15 min response window to TSS threats and real time AIS monitoring of a 3 km kill zone also used as base for counter piracy patrols in Gulf of Aden.

Despite these measures, escort operations remain strained. The imbalance between the cost of protection and the cost of attack limits the ability of naval forces to secure continuous transit across sequential vulnerability points. As a result, commercial operators increasingly factor security risks into routing decisions, with some opting for the longer Cape of Good Hope route to ensure safer passage, despite higher time and fuel costs.

3.4. Contemporary Conflicts and Their Impact on Maritime Security

Gaza Conflict

The most immediate cause of the maritime crisis is the aftermath of the Gaza conflict that escalated in late 2023. The Houthi movement did not begin targeting commercial vessels arbitrarily; rather, it adopted a strategy to weaponise the Bab el-Mandeb Strait as a pressure point linked to the Israeli Palestinian conflict.

The Houthi movement managed to link a terrestrial conflict to the world economy when they announced that they would blockade the Red Sea to any vessel that was associated with Israel or its Western allies. This allowed them to become a vanguard for the 'Axis of Resistance,' an alliance supported by Iran. However, the pattern of attacks expanded to include vessels from neutral countries with no direct links to Israel, raising concerns over the indiscriminate nature of such actions. Despite this, the group has, in some narratives, gained a degree of perceived legitimacy by portraying itself as resisting Western powers.

Russia-Ukraine War

The prolonged Russia-Ukraine conflict has completely split the UN Security Council, which has effectively spelled the end of the post-Cold War era of cooperation among the permanent members. As the United States and European states continue to support Ukraine, Russia has increasingly opposed Western-led initiatives within the Council.

In the context of Red Sea security, proposals to expand enforcement measures against Houthi supply networks have faced resistance, with Russia and China either abstaining or signalling potential vetoes. These states perceive the US-led operation, such as Operation Prosperity Guardian, not as a neutral maritime security operation but as an expression of unbridled Western imperialism.

Sudanese Civil War

The Red Sea region is further destabilised by the ongoing Sudanese Civil War (2023–present). Yemen, which has experienced prolonged internal conflict, lies along the eastern shore of the Red Sea, while Sudan, currently engulfed in civil war, lies directly across on the western shore.

This convergence of conflicts has heightened humanitarian risks. The United Nations' World Food Programme and other such organizations rely heavily on Red Sea shipping routes to deliver food and medical supplies to ports such a



Hodeidah and Port Sudan. Increased insecurity in the Bab el-Mandeb Strait has significantly reduced the number of vessels willing to transit the region, while also raising operational costs for those that continue to do so, thereby exacerbating humanitarian challenges.

Proxy Wars between Iran and Gulf States

The broader geopolitical rivalry between Iran and Gulf states, particularly Saudi Arabia, continues to shape the security dynamics of the region. Reports by UN Panels of Experts have indicated that advanced weapon components used by the Houthis, including drones and missile systems are not domestically produced but are instead supplied through external networks. These include maritime smuggling routes, often involving small vessels such as dhows.

However, the Saudis, having spent several years warring against the Houthis in a grueling struggle before finally achieving a tenuous peace, are walking on eggshells. While they have a strong interest in securing Red Sea shipping routes, there are concerns that escalation, particularly through intensified military strikes, could provoke retaliatory attacks on critical infrastructure, including oil facilities.

4. KEY ASPECTS OF AGENDA

4.1. STAKEHOLDERS AND THEIR INTERESTS

4.1.1. Coastal States

States that directly border the Bab el-Mandab Strait handle most of the regional trade inflows in the region and hence, possess a variety of economic and security stakes. Most of Yemen's neighbours have been forced into defensive coalitions to preserve their interests to their maximum capacity. A key feature of this group is that they pursue their immediate economic concerns, including the revival of unrestricted transit in the Red Sea and reviving important ports in the region. Thus, their geographic proximity makes them the first responders to instability, while also exposing them to immediate economic and security spillovers from disruptions in the strait.

1. Yemen

The state of Yemen remains politically fragmented between the Houthi authorities, who control the north-western regions including key ports, and the Internationally Recognised Government (IRG), which exercises authority over the southern parts of the country. The IRG, in coordination with the Southern Transitional Council (STC), pursues three primary objectives: restoring port trade and freedom of navigation, ensuring the delivery of humanitarian assistance and countering Houthi blockades in northern Yemen. This fragmentation of authority complicates international engagement, as external actors must navigate competing claims to legitimacy.

2. Djibouti

Djibouti's strategic location at the entrance of the Bab el-Mandeb Strait makes it a critical hub for global naval logistics and maritime surveillance. The country prioritises the protection of its port-based economy, which facilitates approximately 95% of Ethiopia's imports. While maintaining a formally neutral stance, Djibouti hosts military bases operated by major powers, including the United States and China. Consequently, it faces heightened concerns regarding potential spillover violence and threats to foreign military installations, and has advocated for strengthening frameworks such as the Djibouti Code of Conduct.

3. Egypt

Egypt has two prime interests, safeguarding Suez Canal revenues and protecting Sinai peninsula from potential spillover effects. The former is significant as the Suez Canal facilitates approximately 12% of global trade, making any disruption a significant strategic and economic concern. The Sinai

Peninsula is threatened by spillovers and indirectly, canal closure. Egypt also plays a role in broader maritime security efforts and seeks to secure its LNG exports while countering regional encirclement dynamics involving Iran and Houthi forces. Prolonged disruptions to the canal route would necessitate rerouting via the Cape of Good Hope, substantially increasing transit times and global shipping costs.

4. Saudi Arabia

Saudi Arabia's primary objective is to mitigate Houthi threats in order to secure the safe passage of oil exports through the Bab el-Mandeb Strait. While supporting maritime security initiatives, including cooperation with US-led efforts such as Operation Prosperity Guardian, the Kingdom has exercised caution in direct escalation. This approach reflects a balancing act between securing trade routes and preserving fragile ceasefire arrangements with the Houthis, particularly given the risk of retaliatory strikes on critical energy infrastructure.

5. Eritrea

Eritrea controls the strategic port of Assab, located directly opposite the Houthi-controlled port of Hodeidah. The port has gained prominence as an alternative logistics hub, supported in part by the United Arab Emirates for regional operations. Revenue generated from leasing the port has contributed to infrastructure development, while Eritrea has largely maintained a position of limited direct involvement. Its geographic positioning nonetheless enables it to play a subtle yet significant role in regional logistics and military access dynamics in the Red Sea.

6. Somalia

Somalia prioritizes ensuring maritime peace and stability to preserve its economic and sovereignty interests. Ports like Berbera, Bosaso, and Kismayo drive revenue, but disruptions and rerouting inflate Somalia's import costs for food, fuel and aid, exacerbating a humanitarian crisis. Furthermore, it views external interventions, like Israel's recognition of Somaliland, as threats that could draw conflicts into its waters. Thus, the nation seeks stable shipping lanes to sustain remittances and supply chains and insists on adherence to international maritime law to prevent exploitation of its territory.

4.1.2. Major Naval Powers

Major naval powers, including the United States, United Kingdom, European Union, China, and India, can be broadly categorised based on their strategic approaches to maritime security in the Red Sea and the Bab el-Mandeb Strait. These states hold significant global influence, contribute a large share of deployed warships, and play a central role in enforcing freedom of navigation while also advancing their geopolitical interests.

Maritime Security Enforcers - United States and United Kingdom

The United States and United Kingdom adopt a proactive and enforcement-driven approach to maritime security. The United States leads global navigation norm enforcement through Combined Task Force 153 under Operation Prosperity Guardian, with its Djibouti-based networks supporting efforts to counter Iran's Axis of Resistance.

Similarly, the United Kingdom complements these efforts through its Bahrain-based operations, leveraging intelligence cooperation frameworks such as the Five Eyes partnership and broader Gulf security partnerships to counter Houthi targeting. These states lead multinational coalitions and rely on forward-deployed bases in strategically located states such as Djibouti to enable sustained surveillance and rapid response to maritime threats. However, their enforcement-heavy approach raises concerns among several states regarding the potential normalisation of militarised responses in international waterways and the risk of escalation.

Trade and Supply Chain Stabilisation Powers - European Union and India

The European Union and India adopt a more cautious and economically driven approach, focusing on protecting maritime trade routes and ensuring the stability of global supply chains, particularly energy imports. The European Union, through Operation Aspides (NAVFOR), coordinates collective economic interests with objectives including safeguarding oil imports, mitigating inflationary pressures, and enhancing strategic autonomy by reducing dependence on external security providers. Meanwhile, India pursues similar goals through increased naval deployments under its SAGAR doctrine, aimed at securing trade flows and maintaining regional stability without direct escalation. While these actors prioritise stability, their limited engagement approach may constrain their ability to effectively deter non-state threats in high-risk maritime zones.

Strategic Balancing Power - China

China represents a distinct approach centred on strategic presence and non-kinetic influence. Its military base in Djibouti enables it to safeguard Gulf investments and secure critical energy imports while avoiding direct participation in US-led coalitions. China's approach reflects a focus on long-term economic and strategic interests, prioritising stability and access over direct military engagement. This calibrated approach, however, has drawn criticism for prioritising economic interests over active contributions to collective maritime security efforts.

These divergent approaches highlight the absence of a unified maritime security framework, resulting in fragmented responses that risk undermining long-term stability in the region.

4.1.3. Regional Powers

Regional powers play a crucial role in shaping the dynamics of the Red Sea crisis as they drive proxies as per their interests, hence controlling Houthi capabilities, flow of arms and mediation channels. These states view the situation at hand as a strategic lever in the struggle to control energy flows and increase regional influence and also provide means for mediation.

1. IRAN

Iran's backing of the Houthi groups serves two major interests. First and foremost, Iran gains an indirect way to impose disproportionate economic costs for the west and Israel via means of this asymmetric warfare. Second, this extends Iran's strategic reach from the Gulf through the Red Sea to the eastern Mediterranean. Additionally, Iran maintains formal deniability for disruptions in the Red Sea, meaning it escapes the risks that would come from its own navy directly targeting naval trade. This is because NSAs are much harder to hold accountable under international law and the state affiliated with them must be proven to have effective control over its operations in order to be prosecuted for it.

2. ISRAEL

Houthi attacks have increasingly targeted Israeli ships post-gaza escalations in 2023, forcing them to reroute around the Cape of Good Hope. Therefore, the first and most important stake for Israel is to restore safe transit through the Bab el-Mandab and counter Iran's proxy capabilities and contain its regional reach. For these purposes, Israel has launched joint operations with the US and military strikes on Iran to demonstrate that Iran's actions would trigger forceful responses, and maritime pressure will not win concessions in Gaza.

3. GULF STATES (SAUDI ARABIA, UAE, QATAR)

The economies of Gulf states are heavily dependent on sea trade and routes via the Bab el-Mandab. Since Houthi disruptions deepen regional instability and leverage unnecessary costs for rerouting, the shared interest of all Gulf States lies in de-escalating the conflict. For example, the UAE has invested in ports and military facilities around Yemen and the Horn of Africa to safeguard its own trade and commercial influence. Furthermore, Saudi seeks to protect its status as an oil 'manufacturing giant' by building ports and pipelines through Yemen's provinces and the Red Sea to ensure unrestricted supply of crude to global markets even when the Strait of Hormuz is blocked. Smaller economies like Qatar and Kuwait have voiced concerns over Bab el-Mandeb to protect their economies from potential spillovers, however do not have any military commitments. However, regional rivalry like Saudi-UAE friction fragments chances of Gulf cooperation against Houthi Rebels.

4.1.4. Non State Actors

From enabling disruptions to absorbing the economic fallout of these very attacks, Non-State Actors and private groups emerge as one of the most pivotal stakeholders of this agenda.

1. THE HOUTHI GROUP

The Houthi rebel group, at present, maintains territorial control over the northern parts of Yemen and aims to keep it this way. This serves a dual purpose- it enables them to secure their smuggling routes and coastline dominance ensures geographical proximity to the maritime chokepoint or in other words easier attacks. These attacks intend to pressure Israel into withdrawing from Gaza and showcase solidarity with Iran's axis of resistance. Moreover, disrupting international trade inflicts billions in global costs, far exceeding Houthi expenses. This amplifies their bargaining power without a conventional navy, especially since NSA's are significantly more difficult to prosecute under international law.

2. PRIVATE ENTITIES

The most important aspect for shipping companies and the insurance sector is the economic impact of Houthi disruptions. Since ships are forced to reroute around the Cape of Good Hope, it adds significantly to the operational costs. Thus, their major interest is in minimizing financial losses, followed by ensuring the safety of assets and crews.

On the contrary, the insurance sector has largely benefitted from these attacks. From baseline 0.2-0.5% of hull value pre-crisis to 0.7-2%+ now, insurance rates have skyrocketed. However, it is to be noted that higher insurance premiums do not guarantee net gains in the long term as claims from sinking or damage can wipe out years of income.

4.2. EVOLUTION OF ASYMMETRIC MARITIME WARFARE

Following their capture of Hodeidah and the western Yemeni coastline in 2014, the Houthis gained direct access to the Yemeni army's stockpiles of coastal missile batteries, patrol craft and ammunition deposits. Building on these seized assets and external technical assistance from the IRGC and Hezbollah, they rapidly expanded from a rudimentary arsenal of sea mines and early anti-ship missiles to a sophisticated multi-vector capability encompassing anti-ship cruise missiles, ballistic missiles, UAV swarms and explosive-laden fast boats.

This evolution was strategically significant not merely because of the weapons acquired, but because of the cost asymmetry it created. The

expense of launching a drone or missile strike remained negligible for the Houthis, while the cost of intercepting each threat ran into hundreds of millions of dollars in advanced munitions, as demonstrated by Saudi Arabia's experience defending against mixed-vector attacks.

This dynamic fundamentally altered deterrence calculations in the Red Sea, enabling a non-state actor with no conventional navy to impose disproportionate and sustained disruption on one of the world's most critical shipping corridors.

ASYMMETRIC OPERATIONAL CAPABILITIES OF HOUTHI FORCES

Prior to the escalation of the Yemen conflict in 2015, the major threats to navigation through the Bab el Mandeb were terrorism and piracy attacks. However, the Houthis mastered a fast-expanding arsenal of weaponry and guerrilla tactics to conduct maritime asymmetric warfare, making use of a broad range of weapons systems, including Anti-Ship Cruise Missiles (ASCMs), Unmanned Aerial Vehicles (UAVs), often deployed in coordinated swarm formations and kinetic naval actions such as commercial ship seizures and boat swarm attacks. In addition to cruise missiles, Houthi forces have also employed anti-ship ballistic missiles (ASBMs), which pose a significant threat due to their high speed, longer range, and difficulty of interception compared to conventional systems.

ASCMs emerged as one of the most effective tools, first notably used in 2016 against a vessel linked to Emirati operations and subsequently deployed against both military and commercial targets along with UAVs and missiles. Additionally, use of small boats for swarm tactics is highly common against civilian shipping in the Red Sea. These swarm tactics involving small, fast-moving boats equipped with light arms and rocket-propelled grenades (RPG) have been used against commercial shipping, although their effectiveness remains limited by rapid defensive responses.

Another unique tactic is the use of remote-controlled, explosive-laden small boats, known as water-borne improvised explosive devices (WBIEDs). Their first major deployment in 2017 targeted a Saudi naval frigate, demonstrating the potential of low-cost systems to inflict significant damage on high-value assets. Additionally, naval mines deployed in the Red Sea continue to pose persistent risks to commercial vessels, contributing to casualties and long-term navigational insecurity.

STRUCTURAL VULNERABILITIES ENABLING ASYMMETRIC WARFARE

The narrow routing structure under the Traffic Separation Scheme (TSS) creates conditions favouring asymmetric warfare, by restricting manoeuvrability and limiting the ability of naval escorts to form effective defensive formations.

Ships passing the Bab el-Mandab require escorts and high-level defense systems. This is due to three reasons. First, the narrow 3km lane does not allow for ships to maintain parallel protective formations, thereby limiting standard naval protection geometry. Second, the shallow waters in some parts of the passage limit evasive manoeuvring for large ships. And third is the geographical proximity of Houthi-controlled areas, particularly around the Yemeni port city of Hodeidah. With launch points located roughly 20 km from the TSS lanes, potential threats can reach vessels within minutes, effectively providing only a brief interception window. This dynamic amplifies the asymmetric nature of the conflict: the cost required to disrupt maritime transit remains relatively low, while the cost of ensuring secure and uninterrupted navigation is significantly higher.

In response to these vulnerabilities, several major powers have established military bases in Djibouti. Notably, the United States, China, and Japan maintain military facilities there, alongside a longstanding French presence. Due to their close proximity, approximately 20-30 km from the TSS lanes, these bases play a critical role in maritime security operations.

Their location enables rapid-response capabilities to incidents occurring within the vulnerable transit corridor. Proximity allows for short reaction times to emerging threats within the narrow passage, allowing for rapid-response operations, real-time maritime surveillance through systems such as Automatic Identification System (AIS) and sustained counter-piracy patrols in the Gulf of Aden. However, their presence also reflects the growing internationalisation of what is fundamentally a localized conflict.

Despite these measures, escort vessels can still be overwhelmed due to the imbalance between the scale of protection required and the relative ease of launching asymmetric attacks. Naval escorts often cannot cover sequential vulnerability windows along the transit route, increasing both operational complexity and the cost of maritime protection. As a result, some shipping operators have increasingly opted to reroute vessels around the Cape of Good Hope, prioritizing safety despite the longer travel time and higher fuel consumption associated with the alternative passage.

POST GAZA ESCALATIONS AND EXPANSION OF MARITIME TARGETING

In 2023, following the escalation of conflict in Gaza, the Houthis claimed that all merchant vessels bound for Israeli ports and ships owned by shipping companies having trade cooperation ties with Israeli businesses would now be the prime focus of their maritime attacks. The US and UK responded with air and missile strikes on Houthi military targets in early 2024, however, the Houthis only broadened the scope of their targets further to include commercial ships owned by the two nations.

Over time, the pattern of attacks has become increasingly indiscriminate, with vessels lacking clear connections to Israel also being targeted, including those associated with countries such as Russia, China and Iran. This marks a shift from selective targeting to broader maritime disruption with wider geopolitical implications.

It shall be noted here that the Israeli war on Gaza came at a critical point for the Houthi when the insurgent group was facing a decline in public support. Thus, the decision to seek intervention in the Israel-Hamas war was through resurgence via maritime attacks in the Red Sea, serving two purposes for the Houthi rebels. First, it reinforced their alignment within Iran's Axis of Resistance, distinguishing them through both political positioning and operational capability. Second, it diverted domestic attention from governance challenges while strengthening internal legitimacy through mobilisation and recruitment. This reflects a transition from a primarily territorial conflict to one increasingly driven by ideological and geopolitical considerations.

4.3. HUMANITARIAN AND ECONOMIC CONSEQUENCES

The Red Sea crisis, driven by repeated Houthi attacks on shipping in the Bab el-Mandeb Strait, has generated severe economic disruptions and exacerbated an already critical humanitarian situation. It has worsened the existing crisis in Yemen and has caused a ripple effect on the global economy creating cascading impacts across global trade, food security and energy markets.

SITUATION IN YEMEN

Since the 2014 Houthi takeover in Yemen, the nation has faced a severe humanitarian crisis amid war, economic collapse and restricted aid access. Humanitarian conditions have seen large-scale deterioration driven by acute food shortage and recurring disease outbreaks.

There are two key aspects to this issue that have aggravated this ongoing crisis. Firstly, the Houthi takeover of significant ports on the coast of Yemen, including Hodeidah that handles nearly 70% of the country's imports, has significantly disrupted aid flow. Aid delivery has increasingly relied on more expensive and logistically complex airlifts and overland routes through Saudi Arabia.

Second, Houthi security forces have arrested and arbitrarily detained UN staff present in the area that was responsible for aid delivery, along with staff of several non-governmental civil society organisations. Due to the threat posed to its staff, the United Nations withdrew its operations from northern Yemen. This led to the closure of essential services including health facilities, water

systems and food distribution programmes that affected millions of people who relied upon these operations for survival. At present, more than 50% of Yemen's population is affected by the humanitarian crisis and nearly 17 million people are facing severe food insecurity at IPC Phase 4+ levels under the Integrated Food Security Phase Classification (IPC), indicating emergency conditions approaching famine.

According to the Office of the United Nations High Commissioner for Human Rights (OHCHR), the conflict has resulted in tens of thousands of civilian casualties, with widespread violations including arbitrary detention, enforced disappearances, restrictions on humanitarian access, and attacks affecting civilian infrastructure. It has documented tens of thousands of civilian casualties since 2015, alongside widespread violations like arbitrary detentions (over 1,000 cases by 2017, with hundreds ongoing), enforced disappearances (at least 51 verified) and attacks on civilian infrastructure.

TRADE DISRUPTIONS

Trade disruptions from Red Sea security threats have forced major shipping reroutes, severely impacting Yemen, East Africa and regional economies. Ships across shipping segments on the Asia-Europe and Asia-Atlantic trade lane have diverted their initial trajectory and started sailing around Africa's Cape of Good Hope. Ships now travel longer distances and face higher operational costs.

These trade disruptions have slashed food and fuel supplies to Yemen and East Africa. East Africa relies heavily on wheat shipments from Ukraine and the European Union through the Red Sea to supplant domestic production. The IPC acute food security scale lists many East African nations as 'crisis', but given the current scenario, they might be pushed into 'emergency'.

The port of Djibouti is extremely important to landlocked Ethiopia and 95% of its imports are dependent on it. However, grain shipments now face delays of about 10-15 days per voyage, leading to acute food shortages and spikes in food prices. Similarly, the port of Sudan is crucial for aid and assistance provided to famine-risk Sudan which now takes months due to rerouting of ships. Egypt's Suez Canal revenues have plummeted nearly 50% year-on-year, straining its budget amid \$9 billion annual losses projected through 2026 due to the diversion of vessels.

INSURANCE AND FREIGHT COST SURGE

Insurance and freight costs have skyrocketed ever since companies have had to slash Bab el-mandab transits. The need to divert from their original routes and transport via Cape of Good Hope for the purpose of safety has led to a 300-500% increase in freight rates on Asia-Europe routes and container rates rose by 400% in Europe. These spikes reflect doubled fuel consumption, extended transit time and strained vessel capacity amid reduced Suez

transits.

Insurance costs were relatively low at around 0.6% of the cargo value during the pre-crisis. However, due to the heightened risks from the conflict, insurance premiums have surged to around 2.0 - 3.5% of cargo value due to heightened missile and drone threats in the Red Sea.

Higher shipping costs from these reroutes are hitting consumers hard, with prices for everyday items like electronics, clothing, and fresh food jumping 5-15%. Delays in delivery are causing shortages that drive up costs even more, especially in places like Yemen and East Africa where food prices have soared 30-50%, making hunger risks worse.

This inflation pressure is felt worldwide, as central banks report a 0.5 - 1% rise in overall prices tied directly to the Red Sea problems. Families in import heavy areas face tougher budgets, translating a maritime disruption into a daily struggle for affordable essentials.

ENERGY MARKET IMPACT

For oil and gas, the crisis has increased transportation costs, particularly for tankers rerouted around Africa. With the Red Sea playing a crucial role in the transport of Middle Eastern oil to Europe and North America, any disruptions in this region have significant consequences for global energy markets. Increased transit times and higher insurance premiums for oil tankers contribute to volatility in energy prices. Houthi attacks have destabilized energy markets by targeting the strait's 12% of global seaborne oil. Liquefied Natural Gas (LNG) flows through the area, about 8% of the world's total have faced major setbacks, while LNG spot prices spiked as Qatar and US exporters avoided the risk zone.

5. RELEVANT LEGAL FRAMEWORKS

5.1. UN CHARTER

5.1.1. ARTICLE 2(4) - Prohibition on the Use of Force

The scope of Article 2(4) protection encompasses three elements that must all be present:

CONTEXTUAL ELEMENTS OF PROHIBITED FORCE

1. Target specificity -

The prohibition protects states' territorial integrity and political independence. The violation of Article 2(4)'s prohibition requires that international relations between two states are compromised, for instance, in the case of direct application of force by one state or another. This element remains unsatisfied in purely internal and domestic conflicts and/or incidents. Additionally, forcible action against a non-state actor group can engage international relations when an intent to coerce another state to act or refrain from acting in a particular way is made clear and affects inter-state relations.

2. Purpose consistency -

The use of force is prohibited in 'any manner inconsistent with the purpose of the United Nations.' The main purposes are the maintenance of international peace and security, and promoting sovereign equality. Hence, use of force that threatens these purposes like coercive blockades or maritime interdiction constitutes a violation to article 2(4), even if not directly targeting territorial integrity or political independence.

3. Attribution to States-

The UN Charter's prohibition on the use of force under Article 2(4) is strictly state centric. Only states are bound by its prohibitions, while the conduct of private groups or non-state actors falls outside its direct scope. Such conduct becomes legally relevant only when it can be attributed to a state under the law of state responsibility, in which case it is the state and not the non-state actor that is deemed to have violated Article 2(4). Attribution requires that the state exercised effective control over or substantially directed, the specific operations in question.

This is a high threshold affirmed in the *Contra Rebel Case* (Nicaragua v United States of America) at the International Court of Justice, which established that general support such as funding or training is insufficient, and that demonstrable control over the particular unlawful conduct is necessary. Despite USA funding, arming and training the Contra rebels, the Court held this did not amount to effective control over their specific operations and their acts were therefore not attributable to the United States.

This principle was applied in the Armed Activities Case (DRC v Uganda), where the Court examined Uganda's relationship with the MLC rebel group. Finding no evidence that Uganda had issued specific instructions or directed the MLC's operations, the Court held that the group's conduct was not attributable to Uganda under the ILC Articles on State Responsibility. However, the analysis shifted with respect to Uganda's presence in the Ituri district between 1999 and 2002, where the UPDF had appointed a military governor, stationed troops in Bunia, and actively administered the territory. This met the threshold for belligerent occupation under Article 42 of the Hague Regulations and triggered direct state responsibility for Uganda's failure to protect civilians, prevent militia violence and halt the plunder of natural resources.

The case thus demonstrates that while the absence of effective control prevents attribution of non-state conduct to a state, the presence of effective territorial control independently imposes a comprehensive set of obligations on the occupying power.

USE OF FORCE AT SEA

Maritime contexts introduce additional complexity to Article 2(4) due to the interplay of state sovereignty, freedom of navigation, high seas norms and the sovereign immunity of warships. Unlike land-based contexts, the law of the sea operates through overlapping regimes, primarily the UN Charter and UNCLOS, which must be read together.

According to ICJ jurisprudence in the Oil Platforms Case (Iran v. United States), forcible measures against foreign vessels, including both state and merchant vessels, are capable of constituting a use of force under Article 2(4). Where such measures reach a sufficiently grave "scale and effects", they may also qualify as an armed attack, triggering the victim state's right of self-defence under Article 51. In that case, the Court examined the US Operation Praying Mantis strikes, which destroyed Iranian oil platforms and found them to constitute an unlawful use of force. The US invocation of self-defence failed because the alleged Iranian actions, including mine laying and speedboat attacks, did not meet the required threshold of gravity or establish a sufficient nexus. The case further clarified that fixed offshore installations such as oil platforms fall within the scope of jus ad bellum protections, extending similar considerations to offshore assets alongside UNCLOS economic zone safeguards.

The principle of sovereign immunity of warships, codified in UNCLOS Articles 95 and 32, further shapes use of force assessments at sea. Warships enjoy complete jurisdictional immunity on the high seas and in all maritime zones under national jurisdiction. As a result, any forcible interference with a warship is treated as direct force against the flag state itself, bringing such incidents squarely within the scope of Article 2(4). State on state confrontations, including ramming, warning shots or forcible boarding, therefore carry

At the same time, not every coercive maritime act reaches the threshold of a prohibited use of force, and significant grey areas persist. Measures such as water cannon deployment, laser dazzling or vessel manoeuvring and shouldering, particularly in regions like the South China Sea, may fall short of an armed attack while still potentially constituting less grave uses of force under Article 2(4) without triggering the right of self-defence. In *M/V Saiga* (No. 2), the International Tribunal for the Law of the Sea (ITLOS) examined a dispute between Saint Vincent and the Grenadines and Guinea concerning the unlawful arrest of an oil tanker. ITLOS held that Guinea used excessive force and clarified that while states may use reasonable and necessary force in maritime law enforcement, particularly during hot pursuit, any force that is disproportionate is unlawful.

Distinguishing lawful enforcement from unlawful coercion requires a case-by-case assessment based on the type and intensity of force used, the resulting physical effects including casualties and damage, and the broader context, including intent and the gravity of the security threat.

LIMITATIONS OF ARTICLE 2(4)

Grey-Zone exploitation

Maritime operations increasingly exploit interpretative ambiguities in Article 2(4). Grey zone maritime actions, usually small-scale incidents between states that involve some degree of physical coercion such as bumping, harassing or hampering the passage of a vessel, often fall below the legal threshold of 'use of force'.

Low-intensity coercive acts that do not involve kinetic weapons are especially difficult to classify under Article 2(4). These ambiguities allow states to apply continuous maritime pressure, leveraging repeated, low-grade hostile acts to influence other states' behavior without triggering formal legal accountability. Such practices can undermine Article 2(4)'s effectiveness in maintaining maritime peace and security, particularly in strategically sensitive waterways such as the Strait of Hormuz, Bab el-Mandeb or South China Sea. Relevant jurisprudence underscores the interpretive nuances and practical limitations of Article 2(4). In the *ICJ Oil Platforms Case* (2003), the Court emphasized that the scale and effects of a forcible act are critical in determining whether it constitutes a use of force under the Charter, noting that minor harassment or low-intensity actions below these thresholds do not amount to a breach. Similarly, in *Nicaragua vs United States* (1986), while the case primarily addressed state attribution for non-state actors, it also illustrates that covert or low-level interventions may evade formal legal classification, highlighting the potential for grey-zone conduct in interstate relations.

Challenges to attribution of responsibility

Attributing the actions of non-state actors or proxies to a state presents significant legal obstacles, especially in maritime contexts. The ICJ jurisprudence in *Contra Rebel Case* (Nicaragua v. United States, 1986) set a high bar for effective control of states over non-state actors by rejecting USA's effective control over specific operations.

Similarly, in *Armed Activities on the Territory of the Congo* (DRC v. Uganda, 2005), the Court reaffirmed that state responsibility for non-state actors requires clear evidence of direction, organization or control. The attribution of responsibility to states for the actions of non-state actors remains a concern due to heightened proof barriers when these operations are influenced by the political interests of the state.

Attacks or harassment by maritime militias, proxy groups or non-state actors at sea whether against commercial shipping, offshore infrastructure or naval vessels cannot automatically be attributed to a state unless there is demonstrable control or direction. These attribution challenges aggravate coercion, allowing states to exert influence through proxies or hybrid tactics while remaining legally shielded.

5.1.2. ARTICLE 51: LAWFUL SELF DEFENSE

The International Court of Justice (ICJ), through consistent interpretation of Article 51 of the UN Charter, has clarified that the right of self-defense is subject to strict and cumulative legal conditions. This framework ensures that actions taken by Member States are consistent with international law and UNSC authority. ICJ jurisprudence identifies four key conditions:

1. Armed Attack Requirement

An "armed attack" constitutes the triggering condition for self-defense. The International Court of Justice has consistently characterized armed attacks as acts of force that meet a certain level of seriousness. In *USA v. Nicaragua*, the Court determined that providing weapons to opposing groups, although it may indicate intervention, does not reach the threshold of an armed attack. In contrast, transborder military incursions or organized armed band operations may constitute armed attacks if they possess sufficient scale and effects.

Scale and Effects Test: The ICJ employs a 'scale and effects' analysis. Relevant factors include:

- Casualties or injury to personnel
- Damage to critical infrastructure or property
- Disruption of governmental, administrative, or maritime functions
- Broader systemic or long-term consequences for security and stability

Threshold Flexibility: The threshold operates contextually rather than numerically. The Court consciously maintains flexibility to prevent premature escalation while preserving credible self-defense rights. Thus it allows for assessment based on severity and potential escalation. Minor violations of the use of force prohibition do not justify proportional or excessive defensive measures, ensuring that self defense responses remain credible, restrained and consistent with international law.

2. Attribution to a State

A fundamental constraint on self-defense involves state attribution. Under traditional ICJ jurisprudence, acts by non-state actors, terrorist groups, insurgents, or irregular militias only trigger self-defense rights if attributable to a state, though this position remains contested in contemporary international law. In maritime contexts, this principle is crucial, for example: attacks on commercial shipping or naval vessels in the Bab el-Mandeb Strait, missile or drone strikes by Houthi forces, or acts of piracy in the Gulf of Aden. Without clear attribution to a state sponsor, defensive operations against these actors cannot lawfully target a state, even if the attacks threaten critical international shipping lanes.

According to ICJ jurisprudence, non-state actors must be organized, directed, or substantially controlled by the state responsible for the attack or acting as de facto agents of that state. Without such attribution, defensive measures cannot lawfully target a state. For example, in *Democratic Republic of Congo v. Uganda*, the Court rejected Uganda's self-defense claim despite serious armed attacks because Uganda failed to prove the attacks were attributable to the DRC government. Rebel group activities, even within the DRC's territory, do not automatically bind the state unless the state directed, controlled or substantially participated in the operations.

3. Necessity

Self-defense measures must be necessary to respond to an armed attack, meaning they are limited to what is required to neutralize the immediate threat. Necessity requires that:

- The attacking state had no adequate alternative means to address the threat
- The defensive measures directly address the threat posed by the armed attack
- The measures were not optional or discretionary

The Court examined whether U.S. attacks on Iranian oil platforms were necessary responses to Iranian mining of the USS Samuel B. Roberts. The Court found that the broader 'Operation Praying Mantis', which involved destruction of multiple Iranian military assets, exceeded what was necessary to respond to the specific mine incident. The operation's scale suggested punitive rather than purely defensive motives.

The principle of necessity is also temporarily constrained by Security Council authority. Once the UNSC takes measures to maintain or restore international peace and security, continued unilateral defensive operations lack legal justification under Article 51, ensuring that member states coordinate their actions with the Council's mandate.

4. Proportionality

Proportionality requires that defensive measures be commensurate with the scale and severity of the armed attack and limited to what is necessary to address the threat. This principle, established as customary international law in cases like Oil Platforms and the Nuclear Weapons Advisory Opinion, operates distinctly from proportionality in international humanitarian law.

In the self-defense context proportionality demands balance between:

- The magnitude and gravity of the armed attack
- The scale, duration, and intensity of the defensive response
- The military objectives achieved
- Collateral harm to civilians and critical infrastructure resulting from defensive operations

The ICJ has not established rigid numerical proportionality metrics, preserving state discretion while requiring reasoned assessment of force. Proportionality failures occur when defensive responses inflict damage substantially exceeding what the initial attack warranted or when operations continue beyond addressing the immediate threat.

The US led strikes on Houthi targets in Yemen (2024) exemplify proportionality in maritime self-defense under customary international law amid Bab el-Mandeb threats. Following over 100 Houthi attacks on Red Sea shipping since October 2023 endangering 12% of global trade the coalition invoked Article 51 via Operation Prosperity Guardian, conducting precision airstrikes on launch sites and radars limited to coastal military assets, without invasion or overreach. This response aligned force scale with attack severity, achieving navigation security per UNSC Resolution 2722 while curbing collateral harm, demonstrating reasoned necessity beyond rigid metrics.

5.2. Customary International Law

The right of self-defense, as enshrined in Article 51 of the UN Charter, establishes that states retain an inherent authority to respond to armed attacks until the UN Security Council intervenes to maintain or restore international peace and security. Beyond the Charter, customary international law has developed key principles namely necessity, proportionality, imminence and state attribution which clarify when and how force may lawfully be used. These principles have been shaped over time through consistent state practice, judicial decisions by the ICJ and historical precedents, creating a coherent legal framework that balances the sovereign

right to defense with the international prohibition on the use of force.

5.2.1. HISTORICAL FOUNDATIONS: Caroline Case, 1837

The Caroline case is often considered the fundamental basis of customary international law on self-defense particularly in shaping the principles of anticipatory action, necessity, and proportionality.

The case arose during the rebellion in Upper Canada, where insurgents sought support against British colonial authorities. A U.S. steamboat, the Caroline, was engaged in transporting supplies to these insurgents when it was attacked and set on fire by British forces operating from Canadian territory. This incident provoked a significant diplomatic dispute between the United States and Britain, raising critical questions about when a state may lawfully use force in response to perceived threats.

US Secretary of State Daniel Webster articulated the threshold for lawful self-defense, stating it is only justified "if the necessity of that self-defense is instant, overwhelming and leaving no choice of means and no moment for deliberation." This formulation established two enduring standards in customary international law. First, the necessity principle restricts the use of force to situations where all peaceful alternatives have been exhausted and immediate action is unavoidable. Second, the proportionality principle requires that any defensive measures must be strictly commensurate with the threat faced, preventing states from using self-defense as a pretext for punitive or excessive action.

The Caroline case is particularly significant for the development of anticipatory self-defense, a concept central to customary international law and later affirmed by ICJ jurisprudence. It established that states cannot invoke self-defense for speculative or long-term threats; rather, the danger must be immediate and unavoidable. These principles continue to guide contemporary interpretations of Article 51, providing a legal framework to assess whether actions such as pre-emptive or collective responses to armed threats comply with international law.

Furthermore, the Caroline case has had a lasting influence on the doctrinal distinctions between anticipatory, pre-emptive and preventive self-defense. By embedding necessity and proportionality into the legal discourse, the Caroline case remains a cornerstone of state practice, ICJ rulings and scholarly debate, shaping the way self defense is applied in both individual and collective contexts under international law.

5.2.2. ANTICIPATORY, PRE-EMPTIVE AND PREVENTIVE SELF DEFENSE

The concepts of anticipatory, pre-emptive and preventive self-defense have emerged as important distinctions in the modern interpretation of Article 51 of the UN Charter, which preserves the inherent right of states to defend themselves against armed attacks. Customary international law has played a central role in shaping these distinctions, ensuring that states exercise self-defense within the parameters of necessity, proportionality, and immediacy of threat. Scholarly debates and state policy documents have helped shape the generally accepted definitions of these terms.

The terminology gained prominence in the 2002 National Security Strategy of the USA under President George W. Bush, which later came to be known as the Bush Doctrine. The NSS explicitly differentiated between pre-emptive strikes and preventive strikes. It explicitly demarcated pre-emptive strikes to be lawful anticipatory strikes against imminent threats and preventive strikes as those against non-imminent dangers. This influenced global discourse and prompted discussions about the nature of threats and response to these threats.

Anticipatory Self-Defense-

- It is the most widely recognized and legally grounded form of self-defense under both customary international law and Article 51.
- The standard of threat for anticipatory defense is derived from the Caroline Case which established that self-defense is justified only where the threat is instant, overwhelming, and leaves no opportunity for deliberation. In practical terms, anticipatory self-defense allows a state to use force against an imminent armed attack, for example, a military incursion already underway or clearly imminent.
- While anticipatory self-defense finds support in state practice and the Caroline standard, the ICJ has not explicitly endorsed it, maintaining that Article 51 is triggered by an actual armed attack.

Pre-emptive Self Defense-

- Pre-emptive strikes are aimed at neutralizing threats that are likely to materialize but are not strictly imminent, such as dismantling missile sites before they can be launched. While the concept remains controversial, it can be considered legally permissible under certain interpretations of customary law if the threat is credible, the use of force is necessary, and the response is proportional.
- It thus extends the logic of anticipatory action to situations where intelligence indicates a clear trajectory toward armed conflict, but the attack has not yet begun.

Preventive Self Defense-

- The 2002 National Security Strategy described preventive strikes as striking against “gathering threats” before they fully develop. It refers to the use of force to counter a potential future threat without clear evidence of intent or capability to attack.
- It was rejected under customary international law and by the UN High-Level Panel (2004) because it undermines the principle of imminence required for lawful self-defense.
- Attacks on speculative threats risk violating the prohibition on the use of force, as there is no immediate danger to justify coercive measures. Consequently, Preventive strikes are considered legally impermissible.

Together, these distinctions illustrate how customary international law continues to define and constrain the exercise of self-defense, balancing state security needs with international legal obligations.

5.2.3. COLLECTIVE SELF-DEFENSE

The right to collective self-defense allows a state to come to the aid of another state that has suffered an armed attack, provided the victim state declares itself the subject of an armed attack and requests or consents to assistance. It functions as an extension to the individual right to self-defense and is in compliance with Article 51 of the UN Charter. This right operates within the same legal framework as individual self-defense, meaning that principles of necessity, proportionality, and state attribution apply equally to the intervening state.

Collective self-defense reflects the practical realities of modern international relations, where alliances and regional security arrangements often require coordinated responses to aggression while remaining consistent with international legal norms. The ICJ in the Nicaragua case clarified the conditions required for lawful collective self-defense to occur. The Court clarified that once an armed attack has occurred, the state claiming to be the victim of such an attack must believe it has been attacked and it must publicly declare such a view for the collective right to be relied on by a third state. The role of reportage to the Security Council thus becomes crucial in establishing a right of collective self-defense and suggests that collective self-defense must occur with some transparency. Additionally, the armed attack must be of sufficient gravity and the intervening state must adhere to the principles of necessity and proportionality.

Treaties like NATO's Article 5 illustrate the same as attack on member states prompts the intervention of other states through a collective response deemed necessary by the alliance.

5.3. UNSC Resolutions

1. UNSC Resolution 1816 (2008)

The resolution was unanimously adopted by the UNSC on 2 June 2008 as Somali pirate activities escalated (more than 40 incidents per month were threatening shipping in the Gulf of Aden). The resolution authorized states cooperating with the Somali Transitional Federal Government (TFG) to board, search and seize suspect pirate vessels in Somali territorial waters and the high seas for an initial period of 6 months. The resolution has since been extended annually.

The resolution established the first exception to the exclusive flag State jurisdiction in the implementation of UNCLOS for counter-piracy operations by allowing “all necessary means” for the repression of acts that pose a threat to navigation while at the same time protecting Somali sovereignty.

The resolution therefore protected the Bab el Mandeb waterway, which carries 12% of world trade. For the purposes of this committee, Resolution 1816 establishes the legal and operational precedent for multinational naval patrols, such as CTF-151 and provides a basis for countering Houthi drone and mothership attacks in the same high-risk maritime corridor.

2. UNSC Resolution 1846 (2008)

It was adopted on 24 November 2008 in response to increasing Somali pirate activities (a total of 111 incidents that year). This resolution renewed the boardings authorized by Resolution 1816 for another year and specified that pirates could be prosecuted by any State on the basis of universal jurisdiction principles.

It called on flag states to flag their vessels in accordance with the Djibouti Code of Conduct for intelligence sharing on mothership movements, while also allowing for pre-emptive boardings of vessels ‘reasonably suspected’ of pirate intentions based on factors like erratic course or armed skiffs.

Resolution 1846 provides the necessary authorization for boardings of dhows or vessels suspected of carrying Houthi drones/missiles headed for Bab el-Mandeb, thereby linking counter piracy operations to the threat of maritime terrorism.

3. UNSC Resolution 1851 (2008)

Adopted unanimously on 16 December 2008, when piracy attacks reached record highs of over 130, Resolution 1851 comprehensively expanded counter piracy mandates by authorizing naval operations inside Somali territorial waters, as well as limited operations inside Somali land territory with TFG consent, in addition to seizures of pirate property including motherships,



skiffs, weapons and ransom money.

Resolution 1851 established the IMO Djibouti Code of Conduct framework for regional states (Djibouti, Yemen, Somalia, etc.) to coordinate information sharing and established the framework for multinational task forces such as CTF-151, which resulted in a 90 percent reduction in piracy attacks within two years through pre-emptive interdictions.

It provides precedent for coordination of coastal states against Houthi attack sites and drone motherships, blurring the line between Somali piracy and Ansar Allah maritime terrorism in the same high threat area.

4. UNSC Resolution 2216 (2015)

Adopted on 14 April 2015 by a vote of 14-0-1 (Russia abstaining) during Houthi ballistic missile attacks on Saudi Arabia and occupation of government facilities, Resolution 2216 called on the Houthis to vacate occupied territories in Sana'a and other cities, end all hostilities and fully implement the GCC Initiative for a political transition in Yemen.

Resolution 2216 imposes a targeted arms embargo on the Houthis and forces allied with Saleh, prohibiting all weapon deliveries (e.g., Iranian drones/missiles) and allowing states to inspect suspicious shipments to or from Houthi-controlled territories. The regime is renewed annually through November 2025 despite violations.

5. UNSC Resolution 2722 (2024)

Adopted on 10 January 2024 by 11-0-4-0 (China, Russia, Mozambique, Palestine abstaining) after over 50 Houthi missile attacks on merchant vessels since October 2023, Resolution 2722 unequivocally condemns the disruption of navigation in the Red Sea, calling upon the Houthis to 'immediately cease all attacks against vessels operating in the Red Sea and release the MV Galaxy Leader with its crew.'

It reaffirmed the rights of States to defend their vessels 'in accordance with international law', the resolution provides political support for Operation Prosperity Guardian without the enforcement tools of Chapter VII.

6. UNSC Resolution 2739 (2024)

It was adopted on 26 June 2024 by 12-0-3-0 (Russia, China, and Algeria abstaining), as attacks by Houthi persisted, in spite of resolution 2722. Resolution 2739 extended its mandate in the Red Sea and condemned attacks on ships, urging a halt in Houthi attacks while welcoming joint naval action.

It reinforced demands for cooperation with Yemen's Presidential Leadership

Council and its legitimate government in safe navigation, as well as a recognition of the humanitarian impact on global food and fuel supplies via Bab el-Mandeb.

7. UNSC Resolution 2812 (2026)

It was adopted on 14 January 2026, extending the Secretary-General's monthly reporting requirement on Houthi attacks against merchant vessels in the Red Sea until 15 July 2026, reflecting continued international concern over disruptions in the strait.

This resolution complemented Resolution 2801 (2025), adopted on 14 November 2025, which had separately renewed the 2140/2216 Yemen sanctions regime, including the arms embargo on Houthis, for another year and strengthened monitoring by the Panel of Experts.

5.4. United Nations Convention on the Law of the Sea (UNCLOS)

The United Nations Convention on the Law of the Sea (UNCLOS) establishes a comprehensive legal framework for all maritime activities and has been effective since 1994. It codifies customary navigation freedoms while allocating resource rights. There has been a high level of contention regarding the limits of freedom of navigation, alongside growing recognition of the rights and entitlements of coastal states to control the seas adjacent to their coasts.

UNCLOS delineates maritime zones, including territorial seas, exclusive economic zones (EEZs) and the high seas, each with distinct rights and obligations. It also addresses the use of straits for international navigation, which are often subject to overlapping entitlements of adjacent coastal states.

Territorial Seas and the Right of Innocent Passage

Under Section 2 of UNCLOS, the territorial sea extends up to 12 nautical miles (nm) from a coastal state's baselines, which are defined as per rules within the treaty itself. Within this zone, the coastal state exercises sovereignty, subject to certain navigational rights of foreign vessels. Innocent passage is a principle of customary international law and a fundamental right of foreign ships from all states to navigate through a coastal state's territorial sea, provided they do not threaten the security or peace of the coastal state as codified in Article 17.

Innocent passage is two-dimensional:

- The right of physical passage: According to Article 18, the movement of a ship through the territorial sea can follow two permissible trajectories: traversing passage and port-access passage, ensuring the passage should remain continuous and expeditious.
- Mode of conduct: This provides the standard for how a ship must behave while engaged in innocent passage. According to Article 19, passage must not be “prejudicial to the peace, good order or security of the coastal State.” Article 19(2) provides a list of 12 activities that are considered prejudicial to the coastal state’s interests if a ship engages in them.

Coastal states retain the right to enact laws regulating innocent passage, provided such measures do not unreasonably impede navigation. Additionally, they may temporarily suspend innocent passage in specific areas for security purposes or take enforcement action against vessels violating coastal regulations. Innocent Passage has been dealt with extensively by the ICJ in case like the Corfu Channel Case (United Kingdom v. Albania).

Straits and Transit Passage

Due to the 12 nautical miles (nm) territorial seas, many water bodies became subject to overlapping entitlements of coastal states. As a response, transit passage was adopted, which means the right to exercise the freedom of navigation and overflight solely for continuous and expeditious transit between one part of the high seas or exclusive economic zone and another part of it through straits used for international navigation under Article 38 of UNCLOS.

Ships in transit have high-seas-like freedoms. However, they should refrain from any act that constitutes a threat or use of force against coastal states and from activities other than those that are incidental to the normal modes of navigation, while complying with international laws and regulations relating to the safety of navigation and marine pollution control as written under Article 39.

While coastal states are not permitted to hamper or suspend transit passage under Article 44, they retain the authority to enact laws and regulations concerning transit passage, including measures related to pollution prevention, as provided under Article 42.

High Seas Freedom

The high seas includes all parts of the sea that are not included in the EEZ, the territorial sea, or the internal waters of a state, or in the archipelagic waters of an archipelagic state. The high seas are governed by “res communis”. These are open to all states whether coastal or land locked. While Article 88 of UNCLOS reserves the high seas for peaceful purposes, this is interpreted as prohibiting acts of aggression rather than all military activity, meaning naval



exercises and operations remain lawful provided they do not threaten other states.

The freedom of high seas as exercised by any state are :

- Freedom of navigation
- Freedom of overflight
- Freedom to lay submarine cables and pipelines
- Freedom to construct artificial islands and installations permitted under international law
- Freedom of fishing
- Freedom of scientific research

Every ship sailing on the high seas must be registered in a country, which then becomes the ship's flag state and exercises exclusive jurisdiction over it. Warships, in particular, enjoy complete immunity from the jurisdiction of any state other than their flag state.

Exclusive Economic Zones (EEZs)

Exclusive economic zone is a sui generis maritime regime under UNCLOS. It extends up to 200 nm from the coastal states baseline, where these states hold the sovereign rights over these 3 main resources:

Non-living resources on the seabed, subsoil and superjacent waters

Living resources of the seabed, subsoil and superjacent waters

Other economic activities related to the economic exploitation and exploration of the zone.

Even within the Exclusive Economic Zone (EEZ), the freedoms of navigation and overflight, along with other internationally lawful uses of the sea related to these freedoms such as the operation of ships, aircraft, submarine cables, and pipelines remain applicable to all states, provided they are consistent with the other provisions of UNCLOS.

While foreign states must respect the laws and regulations enacted by the coastal state, only those measures that align with the Convention and broader international law are valid and they must not conflict with UNCLOS provisions governing the EEZ.

5.5. UNWILLING OR UNABLE DOCTRINE

The 'unwilling or unable' doctrine is a contested principle advanced by certain states in their interpretation of customary international law that extends the traditional right of self-defense under Article 51 of the UN Charter to situations involving non-state actors operating from the territory of another state. In essence, this doctrine says that when a non-state actor launches an armed attack against another state or states from the territory of another state, the "victim" state is entitled to launch a self-defence intervention into the territory of the other state where the armed attack was launched even

without the consent of the territorial state or the Security Council, if that state is demonstrably 'unable or unwilling' to prevent the non-state actor from carrying out the attack.

However, since the 11th September 2001 attacks, some states have invoked this doctrine to justify extraterritorial actions against non state actors such as Al-Qaeda and more recently the Islamic State in Iraq and Syria, arguing that countries like Afghanistan, Pakistan, Syria and others were either unable or unwilling to take measures to prevent their territories from being used as bases for attacks.

According to legal scholarship, the doctrine has not been clearly codified in a treaty or specifically authorized by the Security Council but has evolved through state practices and policy declarations, quoted as a necessary evolution of self-defense in light of the emergence of strong non-state actors in failed or failing states. It creates significant legal ambiguity, raising questions about whether repeated cross-border operations can be justified purely under customary international law without clear Security Council authorization.

Relevance to Agenda

In the case of the Bab el-Mandeb and broader Red Sea region, this doctrine underpins some states' justifications for targeting Houthi-controlled areas in Yemen. The US and the UK have justified attacks against Houthi launch sites and military installations in Yemen as the collective self-defence of their own and other states' shipping against Houthi attacks, on the grounds that the internationally recognized government of Yemen is not in control of Houthi-occupied territory and is therefore unable to neutralize this threat, which are two of the requirements that are commonly referred to in the literature as a state being "unable" to deal with a non-state actor on its own territory.

However, the legal validity of this rationale is highly contested. Commentators have observed that, whilst Resolution 2722 (2024) condemns Houthi attacks and "takes note" of member states' rights to defend their vessels, it does not explicitly endorse the unwilling-or-unable doctrine, creating considerable legal uncertainty regarding its validity in justifying ongoing or expanded strikes against Yemeni territory in the name of freedom of navigation through Bab el-Mandeb.

Potential Legal Gaps and Risks

- **Erosion of the UN Charter:** The approach of leaving it to the State to determine that another government is "unwilling or unable" to address a threat has been criticized as eroding the UN Charter principle of the prohibition on the use of force contained in Article 2(4), weakening the collective security framework.

- Lack of a clear test of 'failure': There is no universally accepted clear test for assessing when local authorities of the host state have truly failed to deal with a non-state actor. This discretion leaves room for subjective interpretation by the intervening state.
- Vagueness of the Necessity and Proportionality Limitations: There is no clear indication of the limits on the use of cross-border force in terms of space, time or scale. This allows for the extension of the intervention to a level far beyond the limits of repelling an imminent or ongoing attack.
- Risk of Pre-emptive Strike Normalization: In the Bab el-Mandeb region, repeated reliance on this doctrine could justify a de facto pre-emptive campaign against Houthi targets under the guise of protecting freedom of navigation, potentially normalizing preventive or anticipatory strikes in ways inconsistent with established international law.

5.6. SUA CONVENTION

The SUA Convention was adopted in 1988 in response to the growing threat of maritime terrorism, most notably the 1985 Achille Lauro hijacking, which exposed critical gaps in existing international law regarding violence against ships at sea. Under the SUA Convention, states commit to implementing the "unlawful acts" on the high seas as criminal offenses under their national laws, including "the seizure of a ship by force, the commission of acts of violence against a ship that endangers safe navigation, or the placement of explosive devices or other destructive substances on a vessel."

Scope, Key Offenses and Obligations

The SUA regime surpasses traditional piracy in its criminalisation of a wide range of deliberate acts that threaten the "safe navigation" of a vessel, such as taking control of a vessel by force, perpetrating violent acts on board a vessel that are likely to threaten navigation, destroying or causing serious damage to a vessel or its cargo, or placing explosive or other destructive devices on board a vessel. It covers nearly all commercial vessels on international voyages, and each State Party must establish its jurisdiction, criminalise these offences, and extradite or prosecute any suspect found in its territory, reflecting the 'aut dedere aut judicare' principle in preventing safe havens for maritime terrorists.

2005 SUA Protocol

The 2005 Protocol to SUA, which was adopted after the 9/11 attacks, extended the treaty to deal with the threat of modern maritime terrorism by including the prohibition on the use of a ship as a weapon (e.g. ramming attacks), transportation of weapons of mass destruction or the launching of a bio/chemical/radiological attack from a vessel.



It directly addresses acts “intended to cause death or serious injury... to compel a government or international organisation,” which directly brings terrorism under the umbrella of the SUA and includes fixed installations such as oil rigs. For the crisis in the Red Sea region, this allows states to hold Houthi drone boat operators, missile crew members, or swarm attack terrorists liable under the laws of the state, rather than under piracy laws.

Application to Red Sea and Bab el-Mandeb

Recent attacks in the Bab el-Mandeb Strait including Houthi drone boat swarms, anti-ship missile attacks and explosive drone attacks on merchant vessels in the Bab el-Mandeb Strait are all SUA offenses, especially under Article 3(1)(c) which criminalizes actions “causing damage to a ship... likely to endanger safe navigation,” encompassing incidents such as attacks on the MV Ruby Mar.

UNSC Resolution 2722 (2024) indirectly supports SUA by condemning the attacks and recognizing state sovereignty to defend their vessels “in accordance with international law,” which gives the state or a country in the region (e.g., Djibouti, Saudi Arabia) jurisdiction to arrest the suspects/perpetrators.

This framework gives naval assets the right to board suspect vessels or detain suspects after an attack, but it does not authorize offensive strikes against Houthi forces on land, which must rely on separate provisions such as self-defense under Article 51 of the UN Charter or Security Council authorization.

Key Limitations and Gaps

- Law enforcement only: SUA provides means for prosecution and boarding operations but does not address cross border military strikes into Houthi territory; states must rely on self-defence provisions (Art. 51) or UNSC authorization for offensive operations.
- Jurisdictional challenges: While Yemen is a party to SUA, the Houthi authorities controlling the relevant territory do not operate as the recognized government, meaning SUA obligations cannot be enforced through Yemeni state institutions in Houthi-controlled areas; law enforcement must therefore capture suspects at sea rather than relying on territorial jurisdiction.
- No prevention mandate: SUA does not address ongoing incidents like drone launches from Yemeni territory like UNCLOS or UNSC resolutions; it only addresses completed incidents like maritime terrorism.
- Political challenges for universal ratification: While approximately 170 states are parties, gaps in membership particularly among some Gulf states, limit consistent application and weaken deterrence. This inconsistent implementation undermines the effectiveness against maritime terrorism.

5.7. DJIBOUTI CODE OF CONDUCT

The Djibouti Code of Conduct (DCoC), formally known as the code of conduct for the repression of piracy and armed robbery against ships in the Gulf of Aden and Western Indian Ocean, was adopted on 29 January 2009 by the representatives of 20 states from the 21 eligible to sign. It takes into consideration past UNSC resolutions regarding maritime security and those which fall within the competence of the IMO. Thus, it provides a regional mechanism for cooperation against piracy and armed robbery at sea, consistent with international law.

Under the DCoC, the member states declared their intentions to cooperate in a manner consistent with international law in:

- the investigation, arrest and prosecution of persons, who are reasonably suspected of having committed acts of piracy and armed robbery against ships, including those inciting or intentionally facilitating such acts
- the interdiction and seizure of suspect ships and property on board such ships
- the rescue of ships, persons and property subject to piracy and armed robbery and the facilitation of proper care, treatment and repatriation of seafarers, fishermen, other shipboard personnel and passengers subject to such acts, particularly those who have been subjected to violence
- the conduct of shared operations, both among signatory States and with navies from countries outside the region such as nominating law enforcement or other authorized officials to embark on patrol ships or aircraft of another signatory.

The Djibouti code of Conduct has four key pillars-

1. Regional training- It encourages states to develop their regional maritime law enforcement capabilities to counter threats to security of navigation through regional training endeavours. The DRTC (Djibouti Regional Training Centre), established in 2015 in Doraleh plays a pivotal role in advancing regional maritime expertise.
2. National legislation- It urges signatories to review and strengthen their national legislation and ensure the criminalization of piracy and armed robbery against ships. States should ensure adequate provisions to conduct necessary investigations, prosecute alleged offenders and exercise jurisdiction over maritime crimes.
3. Information sharing- The DCoC information sharing network, established in 2011, consists of three centres or ISCs (Information Sharing Centres), namely
 - the Regional Maritime Rescue Coordination Centre (RMRCC) in Mombasa, Kenya
 - Maritime Rescue Coordination Centre (MRCC) in Dar es Salaam, United Republic of Tanzania



- Regional Maritime Information Sharing Centre (ReMISC) in Sana'a, Yemen.

These are crucial to sharing information about piracy incidents and other relevant issues and in the mitigation of said issues.

4. Capacity building and cooperation- It involves supporting the development of maritime infrastructure and the enforcement and implementation of the DCOC. It requires strengthening state capacity as well as developing viable solutions. The Jeddah Amendment, 2017 significantly expanded the scope of the DCOC in terms of addressing maritime threats, reflecting the evolving maritime security environment. The amended Code now encompasses additional threats including:
 - Illegal, unreported, and unregulated (IUU) fishing
 - Human trafficking
 - Arms smuggling
 - Narcotics trafficking
 - Environmental crimes

This expansion positions the DCoC as a comprehensive regional framework addressing both traditional piracy and emerging asymmetric maritime threats, while enhancing cooperation, information sharing and law enforcement capacity among member states.

6. EXISTING INTERNATIONAL RESPONSE

6.1. International Maritime Organisation (IMO)

The International Maritime Organization (IMO) is the United Nations agency responsible for ensuring safety and security of shipping. It was established under the Convention of the International Maritime Organization, IMO develops and promotes global regulatory standards for maritime operations.

IMO's official mission is to promote safe, secure, environmentally sound, efficient and sustainable shipping through international cooperation among its member states. This involves adopting the highest possible standards for maritime safety and security and preventing loss of life at sea. It ensures the safety of navigation and management of maritime traffic. Furthermore, it is responsible for the prevention and control of marine pollution from ships. It addresses legal matters related to international shipping and serves as a platform for technical cooperation and capacity building between member states.

The Four Pillars of IMO Regulation

Global maritime governance under the IMO is primarily structured around four fundamental conventions, which form the core framework for safety, environmental protection, training and seafarers' rights:

- The International Convention for the Safety of Life at Sea (SOLAS) establishes minimum safety standards for the construction, equipment and operation of ships. It covers fire safety systems, lifesaving appliances, navigation equipment, radio communications and the safe carriage of cargo, ensuring that vessels meet internationally recognized safety requirements before operating on international voyages.
- The International Convention for the Prevention of Pollution from Ships (MARPOL) focuses on preventing and minimizing pollution caused by ships. It includes rules to prevent oil spills, control the discharge of harmful chemicals, manage sewage and garbage disposal, and reduce air pollution including greenhouse gas emissions from vessels.
- The Standards of Training, Certification and Watchkeeping for Seafarers (STCW) establishes uniform global standards for the training and certification of seafarers. It ensures that crew members are properly educated, trained and qualified to perform their duties safely and efficiently, including maintaining proper watchkeeping practices to avoid accidents at sea.

- The Maritime Labour Convention (MLC) focuses on the rights and welfare of seafarers. It sets minimum standards for working and living conditions on ships, including wages, working hours, accommodation, health care and social protection. It is often called the “seafarers’ bill of rights” because it ensures fair treatment and decent conditions for maritime workers worldwide.

IMO undertakes its technical and regulatory responsibility through 5 key committees out of which Maritime Safety Committee (MSC) is the most relevant to this agenda, as it holds primary responsibility for navigation safety regulations and high-risk area advisories.

Maritime Safety Committee (MSC): It is the highest technical committee of the IMO that holds responsibility for maritime safety and navigation regulations. The MSC develops and updates maritime safety and navigation regulations. It addresses all safety and security matters within IMO’s scope that fall under SOLAS (International Convention for Safety of Life at Sea), which include passenger and cargo ships. It covers aid to navigation, vessel construction, manning, hydrographic data, casualty investigations, salvage, piracy and port security. It also issues circulars and advisories for high-risk areas such as regarding fire safety for drone-hit vessels, etc.

Role of MSC in the Red Sea Crisis: Since the MSC lacks enforcement power, meaning that compliance is completely state-driven, it does not conduct major operations, but rather sets global guidelines that navies and ships implement. Some of its key contributions include-

- **Traffic Separation Schemes (TSS):** The Bab el-Mandab TSS was formally adopted by the MSC in 1973, dividing the strait into inbound and outbound lanes to control the passage of traffic through the narrow chokepoint. It feeds into the Internationally Recommended Transit Corridor (IRTC) for surveillance.
- **Best Management Practices:** Best Management Practices 5 and 6 are guidelines issued to captains and seafarers to protect their vessels from attacks. Before entering the area, a full risk assessment must be completed based on the latest threat reports from navy sources. The crew then registers the ship’s details, route, and speed with United Kingdom Maritime Trade Operations for real-time tracking and with the International Maritime Security Construct for wider alerts.

6.2. Sanctions Committees & Panel of Experts

The UNSC 2140 Sanctions Committee, established by Resolution 2140 (2014) and comprising all fifteen members of the Security Council, oversees the implementation of Yemen’s targeted sanctions regime. Operating by consensus, it designates individuals and entities subject to asset freezes, travel bans and arms embargo measures, primarily targeting Houthi

leadership and associated actors deemed to be obstructing the peace process or threatening Yemen's stability.

The Committee's mandate covers acts under paragraphs 17-18 of Resolution 2140 and paragraph 19 of Resolution 2216 (2015), including violent acts that disrupt the political transition, obstruction of the GCC Implementation Mechanism and support for destabilising actors such as the Houthis. The regime applies globally to all UN Member States, with sanctions renewed until November 2026 under Resolution 2801, adopted in November 2025. In terms of action-taking powers, the Committee can designate or delist individuals and entities, grant case-by-case humanitarian exemptions, examine alleged violations and report its findings to the Security Council. It currently maintains approximately 25 active designations, including Abdul-Malik al-Houthi, with updates as recent as 2025.

The Committee is supported by a five-member Panel of Experts, whose mandate runs until December 2026, providing the primary investigative and analytical capacity of the regime. The Panel conducts site visits, satellite monitoring and investigations of intercepted vessels, producing semiannual reports that have traced Iranian missile components, including Qiam-1 variants, from smuggled dhows to Houthi launch sites. Its January 2026 report identified 12 new maritime breaches, implicating Omani firms and Djibouti officials in transshipment networks and providing a substantive evidentiary basis for further designations. The Committee also coordinates with INTERPOL to facilitate enforcement through mechanisms such as Red Notices, and has increasingly linked sanctions evasion networks to the maritime transfer of weapons and dual-use materials.

Despite its strong analytical capacity, the Committee's effectiveness remains significantly constrained. The Panel of Experts lacks enforcement authority and is limited to issuing non-binding recommendations. Restricted access to Houthi-controlled areas, including Sana'a, prevents on ground verification and necessitates reliance on naval intelligence from multinational operations such as Operation Prosperity Guardian and CTF-153. Most critically, geopolitical divisions within the Security Council, particularly resistance by Russia and China to measures implicating Iran, have hindered consensus-based action. This has resulted in only three new designations since Resolution 2722, despite escalating instability in the Red Sea.

6.3. Yemen Arms Embargo - Implementation and Violation

The Yemen arms embargo, initially established by UNSC Resolution 2216 (2015), bans all deliveries of weapons, ammunition, drones, missiles or technology supporting the Houthis and their groups, enabling states to examine suspicious shipments headed for Houthi ports like Hodeidah. Renewed through 2801 (2025), it updates the sanctions regime established

by 2140 but focuses on a particular type of military equipment, with violations subjecting offenders to Committee designations. This addresses Iranian-provided anti-ship ballistic missiles (ASBMs) and UAVs used in Red Sea incidents.

The 2140 Panel of Experts' reports (latest January 2026) reveal the systematic breach of the embargo via maritime smuggling operations: dhow ships leaving Iran's Bandar Abbas, transshipment via Oman's Salalah or Djibouti and delivery of components for Houthi missile assembly. The over 20 cases of violations since 2023 include GPS-guided projectiles identified as Islamic Revolutionary Guard Corps (IRGC) Quds Force origin, allowing for precise attacks on MV Gibraltar Eagle and other ships. Despite some interceptions (e.g. USN intercepts of 5+ shipments), 80% of shipments go undetected due to poor coastal state capabilities.

Key gaps continue to undermine the effectiveness of the Yemen arms embargo. Limited participation by regional states such as Oman and Djibouti in robust inspection regimes weakens maritime monitoring, while Houthi control of Hodeidah port restricts UN verification on the ground. In parallel, divisions among the P5, particularly over Iran-related designations, have stalled the expansion of sanctions listings, reducing the overall deterrent effect of the regime. At the operational level, multinational naval coalitions, including Operation Prosperity Guardian, conduct only a small proportion of authorized boardings under UNSC resolutions such as 1816 and 1846, leaving most maritime trafficking unchecked.

6.4. EXISTING NAVAL COALITIONS

Multilateral coalitions are one of the major international responses to disruptions in seafaring that operate under established frameworks like the Combined Maritime Forces (CMF) focusing on defensive escort operations, maritime interdictions and real-time threat monitoring. While they enhance situational awareness and provide immediate protection to commercial shipping, their mandates, operational scope, and rules of engagement vary significantly, shaping their overall effectiveness.

Some of the most prominent naval coalitions are listed below:

1. Operation Prosperity Guardian

Launched by the United States on December 18, 2023 under CMF's Combined Task Force 153 (CTF-153), it was created specifically to address Red Sea security threats. It operates from the US Central Command (CENTCOM) headquartered in Bahrain and has established defensive picket lines across the Bab el-Mandab strait and the Gulf of Aden. It has three important aims- countering Houthi threats, protecting merchant vessels and ensuring safe passage in the strait. It has also implemented a real-time Automatic Identification System (AIS) tracking integration with commercial shipping

alerts and convoy escort protocols.

However, it has only been able to achieve partial success. While it has intercepted a significant number of incoming threats, it has not been able to establish effective deterrence, as Houthi attacks continue and commercial shipping volumes through the Red Sea have declined due to persistent security concerns.

2. Operation ASPIDES

The European Union launched Operation Aspides on 19 February, 2024 under the European Maritime Awareness in the Strait of Hormuz and Bab el-Mandab (EUMAM) framework with its headquarters in Athens. Unlike Prosperity Guardian's offensive strikes, its mandate focuses purely on defensive protections for vessels of EU states and humanitarian shipments. It adheres strictly to UNCLOS peacetime rules of engagement and the scope of its action remains limited to providing armed escort and air defense and focusing on de-escalation.

The operation has achieved targeted successes, including the protection of World Food Programme shipments to conflict-affected regions such as Sudan and Yemen. However, its impact remains constrained by its limited mandate and coordination challenges, as overlapping operational zones with other coalitions create uncertainty for commercial vessels regarding protection coverage.

3. Operation Sankalp

India launched Operation Sankalp in 2019 following early Houthi attacks on Saudi oil facilities, which threatened a large portion of India's crude oil imports. Initially deployed to safeguard Indian-flagged vessels and energy shipments, the operation has expanded in scope with increased Houthi activity, incorporating additional naval assets and surveillance capabilities, including long-range maritime patrol aircraft.

Sankalp prioritizes the protection of India's energy supply chains transiting through the Bab el-Mandeb Strait and aligns with India's broader "Security and Growth for All in the Region" (SAGAR) doctrine. While effective in ensuring the safety of Indian-linked shipping, its limited geographic and strategic scope means it functions as a complementary rather than comprehensive security mechanism within the wider coalition landscape.

4. Combined Task Force 151 (CTF-151)

CTF-151 was established in 2009 specifically to address the Somali piracy surge, giving it historical relevance to the Bab el-Mandeb corridor but a mandate that has not kept pace with the shift to asymmetric threats. While CTF-151 has been highly effective in reducing Somali piracy and enhancing regional maritime capacity, its mandate remains limited to

piracy-related threats. As a result, it is not equipped to respond to contemporary asymmetric threats such as missile and drone attacks originating from land-based actors, thereby limiting its relevance in the current Red Sea security crisis.

5. Combined Task Force 150 (CTF-150)

It also operates under the Combined Maritime Forces, Combined Task Force 150 is tasked with promoting maritime security and countering illicit activities, including arms smuggling, narcotics trafficking and terrorist financing across the Arabian Sea, Gulf of Aden and Red Sea.

CTF-150 plays a significant role in enforcing elements of the Yemen arms embargo through interdiction of suspicious vessels and disruption of maritime smuggling networks. However, its operational focus remains on broader maritime security rather than direct protection of commercial shipping and it lacks a mandate for active engagement against hostile actors, limiting its effectiveness in high intensity threat environments.

6. EU NAVFOR Operation Atalanta

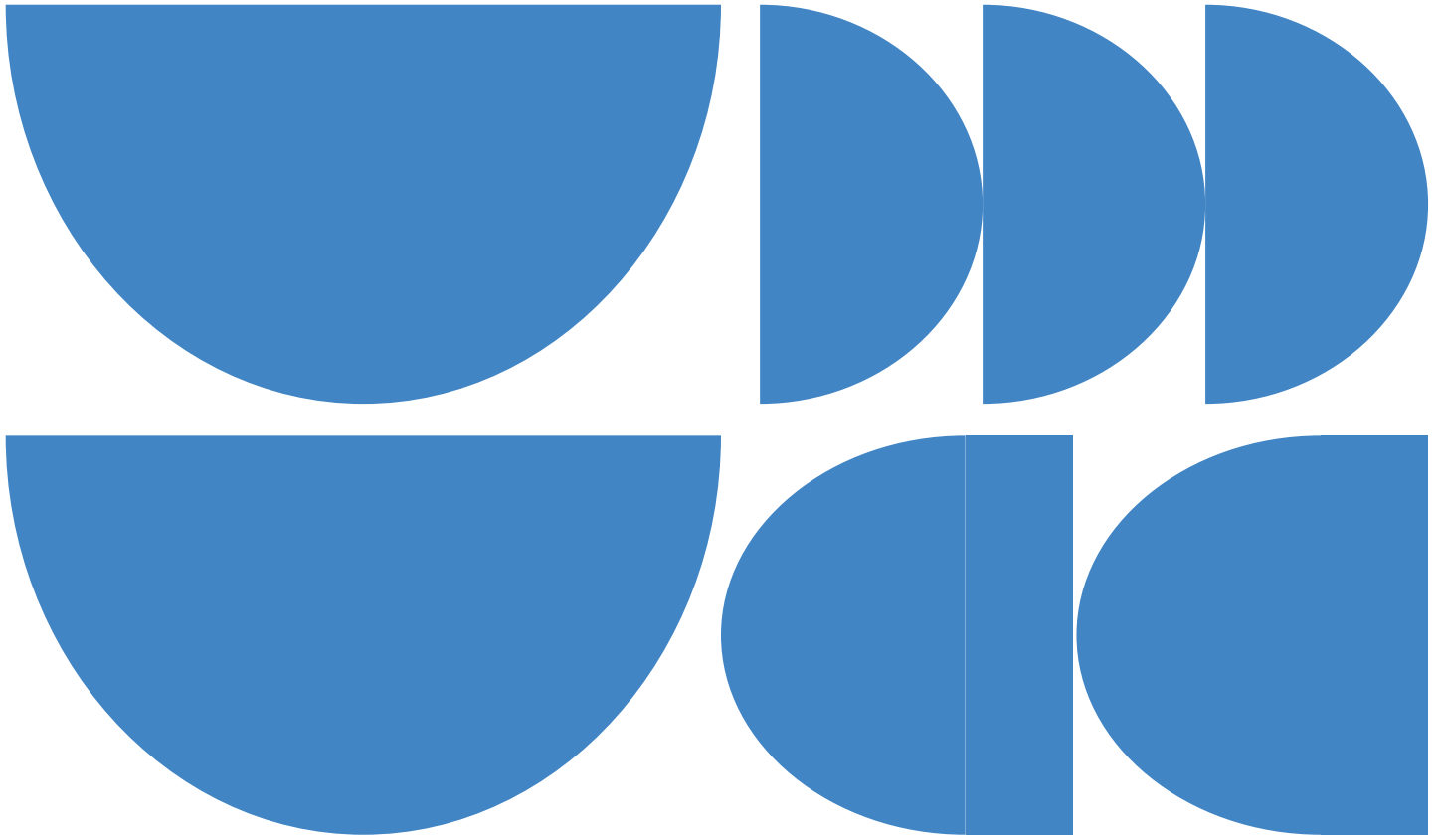
Operation Atalanta predates the current crisis and operates within a peacetime counter-piracy mandate, making it structurally ill-suited to the missile and drone threat environment of the post 2023 Red Sea. The operation has achieved notable success in reducing piracy and safeguarding humanitarian shipments. However, its mandate is confined to counter-piracy and maritime security within a peacetime legal framework, which restricts its ability to address evolving threats such as Houthi missile and drone attacks. Consequently, while it contributes to regional stability, its role in addressing the current Red Sea crisis remains indirect and limited.

The presence of multiple naval coalitions in the Red Sea reflects strong international commitment but also significant fragmentation. While Operation Prosperity Guardian focuses on active threat interception, operations like ASPIDES and Operation Atalanta remain limited to defensive mandates. Similarly, Combined Task Force 150 and Combined Task Force 151 address smuggling and piracy but lack the scope to counter modern asymmetric threats, while Operation Sankalp operates with a primarily national focus.

This results in overlapping operations without a unified command, creating coordination gaps and limiting deterrence. Although collective presence improves surveillance and response, the fragmented mandates make the overall framework reactive and insufficient to effectively address evolving threats in the Bab el-Mandeb Strait.

7. QUESTIONS TO GUIDE DEBATE

- How should the UNSC reconcile anticipatory self-defense under Article 51 with pre-emptive measures against asymmetric maritime threats in the Bab el-Mandeb, while maintaining consistency with UNCLOS?
- How can the UNSC design maritime security mandates that are operationally independent from linked terrestrial conflicts, preventing non-state actors from holding international shipping hostage to land-based political grievances?
- What maritime interdiction and intelligence-sharing measures can the UNSC authorize to cut off sophisticated arms supplies to non-state maritime actors, without triggering direct confrontation with regional state suppliers?
- What long-term reforms to global maritime security frameworks, including UNCLOS mechanisms, IMO protocols and choke-point monitoring regimes, are needed to provide durable protection of strategic straits against non-state actors, beyond temporary military deployments?
- How can the UN assist littoral states such as Djibouti and Eritrea in developing maritime security capabilities without exposing them to retaliatory attacks or entrenching great-power proxy dynamics?
- What legal and operational standards should govern the application of the “unable or unwilling” doctrine against non-state maritime actors in fragile states like Yemen, without undermining state sovereignty or creating destabilizing precedents?
- What role should regional frameworks such as the Arab League, African Union and combined maritime forces play in coordinating a multilateral naval mandate for the Bab el-Mandeb?
- How can the UNSC enforce maritime arms embargoes and security measures at the Bab el-Mandeb Strait without disrupting critical humanitarian aid flows to Yemen and Sudan?



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